

13	Rojas v. Alamirad Dental Corp	Before the Court are the following motions on the cross-complaint ("XC") of cross-complainants Farzan Alamirad ("Alamarid") and Alamarid Dental Corp. APC ("Alamarid Dental"): 1) demurrer filed by cross-defendant Elizabeth Rojas ("Rojas"); 2) demurrer filed by cross-defendants Kevin Badii, DDS and Compass PCG, LLC ("B/C") and joinder by Rojas; 3) demurrer and motion to strike filed by cross-defendant Ali Imani ("Imani"). For the reasons set forth below, each of the three demurrers is SUSTAINED with 20 days' leave to amend. The motion to strike is moot. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (Code of Civ. Proc. § 430.10, subd. (f).) A special demurrer also lies where there is a defect or misjoinder of parties. (Code of Civ. Proc. § 430.10, subd. (d).) <u>Demurrer by Rojas:</u> The cross-complaint by Alamirad Dental is defective because Alamirad cannot bring the action "on behalf of Alamirad Dental Corp.," as doing so would constitute the unauthorized practice of law. (Bus. & Prof. Code § 6125.) In addition, the legal theories for "intentional interference with business relations" and "stealing business secrets" are vague and ambiguous. To the extent Alamirad intended to allege intentional interference with contractual relations and/or misappropriation of trade secrets, the elements of such claims are not properly alleged. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55 [elements of intentional interference with contractual relations]; <i>Silvaco Data Systems v. Intel Corp.</i> (2010) 184 Cal.App.4th 210, 220 [elements].) The elements of fraud are not pleaded with the requisite specificity. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 32 [elements]; <i>Lazar v. Sup. Ct. (Rykoff-Sexton, Inc.)</i> (1996) 12 Cal.4th 631, 645 [fraud must be pled with specificity].) The claims for conversion and breach of fiduciary duty appear to belong to the corporation, not Alamirad individually; the claims by the corporation are defective as set forth above. Alamirad failed to oppose the demurrer, thereby conceding the merits. (<i>Herzberg v. County of Plumas</i>, (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The demurrer is therefore SUSTAINED with 20 days' leave to amend. <u>Demurrer by B/C:</u> A cross-complaint against anyone other than the plaintiff must relate to the subject matter or transaction alleged in the plaintiff's
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	complaint. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 6:500; Code Civ. Proc., § 428.10, subd. (b).) Here, plaintiff Rojas’ claims against Alamirad and Alamirad Dental are employment-related and arise out of conduct occurring while she was employed by them from June 5, 2024 to September 22, 2024. (Compl. ¶¶ 8-22.) By contrast, the cross-claims asserted against B/C primarily arise out of alleged breaches and fraudulent representations in connection with the sale of the dental practice to cross-complainants in October 2023. (XC at pp. 3-6.) Most of the claims against B/C involve a commercial dispute unrelated to Rojas’ employment or the subject matter of Rojas’ complaint. The only cause of action against B/C in the cross-complaint that potentially relates to Rojas’ employment is the 7th cause of action for “stealing business secrets.” (XC at p. 8.) However, that claim is not properly alleged, as discussed above. The demurrer is therefore SUSTAINED with 20 days’ leave to amend as to the 7th cause of action and SUSTAINED without leave to amend as to all other causes of action. <u>Demurrer and Motion to Strike by Imani:</u> All of the causes of action against Imani are insufficiently pled. The elements of fraud are not pleaded with the requisite specificity. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 32 [elements]; <i>Lazar v. Sup. Ct. (Rykoff-Sexton, Inc.)</i>(1996) 12 Cal.4th 631, 645 [fraud must be pled with specificity].) Alamirad also fails to adequately allege the elements of conversion and civil conspiracy against Imani. (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240 [elements of conversion]; <i>Doctors’ Co. v. Superior Court</i> (1989) 49 Cal. 3d 39, 44 [elements of civil conspiracy].) Alamirad failed to oppose the demurrer, thereby conceding the merits. (<i>Herzberg v. County of Plumas</i>, (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The demurrer is therefore SUSTAINED with 20 days’ leave to amend. The motion to strike punitive damages is moot. Counsel for Badii and Compass shall give notice of this ruling.
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